

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

CRIMINAL PETITIONS NO.1327, 1518-L AND 1531-L OF 2019

(On appeal against the judgment dated 23.10.2019, passed by the Lahore High Court, Lahore in Criminal Appeals No.694 & 994 of 2011 and Capital Sentence Reference No.20-T of 2011)

Khurram Ijaz
(in Criminal Petition No.1327/2019)

Sultan Mehmood
(in Criminal Petitions No.1518-L & 1531-L of 2019)

...Petitioner(s)

VERSUS

The State etc
(in Criminal Petition No.1327/2019)

Syed Ahsan Shah etc
(in Criminal Petition No.1518-L/2019)

Khurram Ijaz etc
(in Criminal Petition No.1531-L/2019)

...Respondent(s)

For the Petitioner(s): Syed Muhammad Farhad Tirmazi, ASC
(in Criminal Petition No.1327/2019)

Mr. Munir Ahmed Bhatti, ASC
(in Criminal Petitions No.1518-L & 1531-L of 2019)

For the State: Rana Tasawar Ali Khan, Addl.P.G. Punjab

Date of hearing: 13.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- The prosecution case, as set out in First Information Report No. 04/2010 (Exh.PA/1), registered under Sections 302, 324, 148 and 149 of the Pakistan Penal Code, 1860 (“PPC”) and Section 7 of the Anti-Terrorism Act, 1997 (“ATA”) at Police Station Sarwar Road, Lahore, is that on 20.01.2010 at about 7:00 p.m., the informant Sultan Mehmood (PW-12), accompanied by

Amir Mughal, Sabz Ali and Ahsan Ullah Jalali, proceeded to Allama Iqbal International Airport, Lahore to receive his maternal nephew, Arif Ameer alias Tipu, who was arriving from Dubai by PIA Flight PK-204. The flight landed at about 7:35 p.m. After 20/25 minutes of his arrival, Arif Ameer alias Tipu came out of the lounge and, along with the complainant party, proceeded towards the parking area. When he was about to board a vehicle, the petitioner Khurram Ijaz allegedly appeared at the scene and resorted to indiscriminate firing at Arif Ameer alias Tipu, as a result whereof he got hit and sustained firearm injuries. The Informant and his companions allegedly took cover by sitting down. It is further alleged that Ahsan Ullah Jalali overpowered the petitioner and snatched the pistol from him. The unknown co-accused of petitioner while making firing managed to decamp from the scene. The injured Arif Ameer alias Tipu was immediately shifted by the informant party to Mayo Hospital through Rescue-1122, where he succumbed to the injuries. The statement of the informant Sultan Mehmood was recorded by Manzoor Ahmad, Inspector (PW-15), on the basis whereof the aforementioned FIR was registered.

2. Upon arrest of the petitioner Khurram Ijaz and completion of investigation, a report under Section 173 of the Code of Criminal Procedure, 1898 ("the Code") was submitted against him before the learned Anti-Terrorism Court-II, Lahore ("the Trial Court"). After full-dressed trial, the learned Trial Court, vide judgment dated 02.05.2011, convicted him under Section 302(b) PPC and sentenced to death, with a direction to pay compensation of Rs.100,000/- to the legal heirs of the deceased under Section 544-A of the Code, and in default thereof to undergo six months' simple imprisonment. He was further convicted under Section 7 ATA and sentenced to death along with a fine of Rs.100,000/-, and in default thereof to further undergo simple imprisonment for one year. However, he was acquitted of the charge under Section 324/34 PPC.

3. Co-accused Syed Ahsan Shah was tried separately. Upon conclusion of his trial, the learned Trial Court convicted him under Section 302(b)/34 PPC and sentenced to imprisonment for life with

compensation of Rs.200,000/- payable to the legal heirs of the deceased under Section 544-A of the Code, and in default thereof to undergo six months' simple imprisonment. He was also convicted under Section 7(1)(a) ATA read with Section 34 PPC and sentenced to imprisonment for life with a fine of Rs.200,000/-, and in default thereof to undergo six months' simple imprisonment. Additionally, he was convicted under Section 324/34 PPC and sentenced to five years' rigorous imprisonment with a fine of Rs.50,000/-, and in default thereof to undergo three months' simple imprisonment. He was further convicted under Section 21-L ATA and sentenced to five years' rigorous imprisonment with a fine of Rs.50,000/-, and in default thereof to undergo three months' simple imprisonment. All sentences were ordered to run concurrently. Benefit of Section 382-B of the Code was extended to him vide judgment dated 27.02.2015.

4. The Lahore High Court, Lahore, vide judgment dated 11.10.2019 ("the impugned judgment"), dismissed the appeal filed by the petitioner Khurram Ijaz, maintained his conviction under Section 302(b) PPC and Section 7 ATA, but commuted his death sentence to imprisonment for life under each count. Consequently, Capital Sentence Reference No.20-T of 2011 was answered in the negative. The appeal preferred by the informant Sultan Mehmood against the acquittal of the petitioner Khurram Ijaz under Section 324/34 PPC was dismissed. However, the appeal filed by co-convict Syed Ahsan Shah was allowed; his convictions and sentences recorded by the Trial Court were set aside and he was acquitted of the charge vide judgment dated 11.10.2019.

5. Through Criminal Petition No. 1327 of 2019, the petitioner-convict Khurram Ijaz has assailed the impugned judgment of the High Court to the extent of his conviction and sentence. Conversely, Criminal Petition No. 1531-L of 2019 has been filed by the informant Sultan Mehmood seeking enhancement of the petitioner's sentence from imprisonment for life to death and challenging his acquittal under Section 324/34 PPC. He has also instituted Criminal Petition

No. 1518-L of 2019 against the acquittal of co-accused Syed Ahsan Shah by the High Court.

6. At the very outset, learned counsel for the petitioner-convict, Khurram Ijaz, stated that he would not press the petition on merits to the extent of conviction and sentence awarded to the petitioner under Section 302(b) PPC provided that the conviction and sentence of the petitioner recorded under Section 7(a) ATA are set aside as according to him the peculiar facts and circumstances of the case as well as the nature of evidence on record, the occurrence in question does not fall within the ambit of Section 7 ATA in view of the law settled by larger Bench of this Court in *Ghulam Hussain v. The State* (PLD 2020 Supreme Court 61), wherein the scope and parameters for applicability of Section 7 ATA have been authoritatively laid down.

7. Conversely, learned counsel for the informant-respondent vehemently opposed the contentions of learned counsel for the petitioner-convict by arguing that sufficient material is available on record to bring the case within the ambit of Section 7 ATA, keeping in view the place and the mode and manner of the occurrence. He further pressed for enhancement of the sentence of the petitioner-convict from imprisonment for life to the normal penalty of death, contending that no mitigating circumstance is discernible from the record which could justify the lesser sentence awarded by the High Court.

8. In view of the submissions advanced by learned counsel for the petitioner-convict, the foremost question requiring determination is whether, in the facts and circumstances of the case and in light of the evidence available on record, the provisions of Section 7 of the Anti-Terrorism Act, 1997 ("ATA") are attracted, particularly keeping in view the ratio laid down by the larger Bench of this Court in *Ghulam Hussain's* case (supra). The ancillary question relates to the quantum of sentence.

9. Although learned counsel for the petitioner-convict has not pressed the petition on merits to the extent of conviction and

sentence of the petitioner-convict under Section 302(b), PPC, yet, in order to meet the ends of justice, we have independently examined the evidence on record. The occurrence admittedly took place at Allama Iqbal International Airport, Lahore. The petitioner-convict was apprehended at the spot by PW-13 Ahsan Ullah alias Jalali along with the crime pistol. The prosecution case rests upon the ocular account furnished by Sultan Mehmood (PW-12), Ahsan Ullah alias Jalali (PW-13) and Amir Mughal (PW-14), who had gone to the airport to receive the deceased, Arif Ameer alias Tipu, arriving from Dubai via PIA Flight PK-204. The said eyewitnesses have plausibly explained their presence at the place of occurrence. Their testimonies are consistent on all material particulars, including the date, time and place of occurrence as well as the manner in which the occurrence was committed. They have also remained consistent regarding the post-occurrence events also. Despite lengthy cross-examination, nothing favourable to the defence or adverse to the prosecution could be elicited. The petitioner-convict, along with the crime pistol, was handed over to Manzoor Ahmad, Inspector (PW.15), who conducted the spot inspection. During such inspection, he secured bloodstained earth from the place where the deceased had fallen, along with four empties of 9 MM and ten empties of .30 bore pistol, besides a card and broken pieces of glass. The reports of the Chemical Examiner (Exh.PY), Serologist (Exh.PZ) and Punjab Forensic Science Agency, Lahore (Exh.PAA and Exh.PBB) in respect of the bloodstained articles, the crime weapon and the recovered empties lend full corroboration to the ocular account. The medical evidence furnished by Dr. Noman Butt (PW-3), who conducted the postmortem examination, is also in complete harmony with the prosecution version. The concurrent findings recorded by the Courts below regarding the guilt of the petitioner-convict under Section 302(b), PPC are based upon proper appreciation of the evidence and suffer from no legal infirmity warranting interference.

10. Adverting to the question of applicability of Section 7 of the Anti-Terrorism Act, 1997, it is correct that the occurrence took place

at Allama Iqbal International Airport, Lahore, which is a public place. However, it is by now well settled that mere place of the occurrence is not by itself sufficient to attract the provisions of the ATA. The decisive factor is not the place of occurrence alone but the object, design and impact of the act within the contemplation of Section 6 ATA. It is not the prosecution case that the attack was made by the petitioner-convict upon any law enforcement agency or that any official thereof sustained injury. The FIR is conspicuously silent with regard to any motive suggesting that the act was intended to coerce, intimidate or overawe the Government or the public at large. On the contrary, in his statement under Section 342, Cr.P.C., the petitioner-convict stated that his real brother had earlier been murdered by one Iqbal Wahid, allegedly an employee of the deceased, and that the deceased was supporting the said accused. This version, though taken by the petitioner in his statement, prima facie indicates that the occurrence was rooted in personal vendetta. The larger Bench of this Court in *Ghulam Hussain's case* (supra) has elaborately examined the scope of Sections 6 and 7 of the ATA and laid down authoritative guidelines for determining when an offence would fall within the ambit of "terrorism." It was held that mere commission of a scheduled offence, even if committed at a public place or in a brutal manner, does not *ipso facto* constitute terrorism. The Court emphasized that for an act to qualify as terrorism, the prosecution must establish that the action was designed to coerce, intimidate or overawe the Government, or to create a sense of fear or insecurity in society or a section thereof, or that it was committed for advancing a religious, sectarian or ethnic cause. The intention, design and effect of the act are, thus, the determinative factors. It was further clarified by the larger Bench that acts arising out of personal enmity, private vendetta, property disputes or other individual motives, though grave and reprehensible, would not ordinarily fall within the ambit of Section 6 unless accompanied by the specific design or impact contemplated by clauses (b) or (c) of subsection (1) of Section 6 ATA.

11. Examining the present case in the light of the principles laid down in *Ghulam Hussain's case (supra)*, we do not find any material on record to demonstrate that the act of the petitioner-convict was intended to strike terror in society at large, or to coerce or intimidate the Government or the public within the meaning of Section 6 of the ATA. The evidence suggests that the occurrence was the result of a personal grudge. The prosecution has failed to establish the requisite *mens rea* and design necessary to bring the act within the mischief of ATA. In these circumstances, while the conviction of the petitioner-convict under Section 302(b), PPC is well founded and calls for no interference, the conviction under Section 7 of the ATA cannot be sustained in view of the law laid down by the larger Bench of this Court.

12. Coming to the question of sentence, it is to be noted that the informant, in the FIR, did not attribute any motive behind the occurrence, nor was any motive brought on record during the trial through independent evidence by the prosecution. The findings of the Trial Court that as the deceased had enmity with so many people and many criminal cases for and against him had been registered against him in past, therefore, it can be said that someone out of his old opponents with whom the deceased had severe enmity, had used the petitioner-convict Khurram Ijaz for murder of the deceased, as hired assailant are not supported by any material evidence on record, rather such findings of the Trial Court are based on mere presumption. The findings of the High Court that the motive behind the occurrence remained a shrouded mystery to a great extent are convincing. However, as stated earlier, one can infer the motive from the statement of the petitioner-convict recorded under Section 342, Cr.P.C., wherein he stated that his real brother had earlier been murdered by one Iqbal Wahid. The said Iqbal Wahid was the employee of the deceased; that the deceased was supporting the accused Iqbal Wahid in the murder case of his brother. This version, though taken by the petitioner in his statement, *prima facie* indicates that the occurrence was rooted in personal vendetta by the petitioner-convict. However, the prosecution itself has failed to

establish any motive behind the occurrence. It is by now a settled principle of law that where motive is neither alleged in the FIR nor proved through reliable evidence, the normal rule is to commute the sentence of death to imprisonment for life. In *Zeeshan Afzal alias Shani v. The State* (2013 SCMR 1602), this Court held that if motive is not alleged or proved, the sentence of death is ordinarily converted into imprisonment for life. The same view has recently been reaffirmed in *Muhammad Yasin v. The State* (2024 SCMR 128). In the present case, keeping in view the absence of motive and the overall facts and circumstances, we are not persuaded to enhance the sentence from imprisonment for life to death under Section 302(b), PPC.

13. For the foregoing reasons, Criminal Petition No.1327 of 2019 is converted into an appeal and is partly allowed to the extent that the conviction and sentence of the appellant-convict under Section 7(a) of the Anti-Terrorism Act, 1997 are set aside. However, his conviction and sentence under Section 302(b), PPC are maintained. No case for enhancement of sentence is made out. Consequently, Criminal Petition No.1531-L of 2019 is dismissed and leave to appeal is refused.

Criminal Petition No.1518-L of 2019

14. Adverting to the acquittal of co-accused/respondent Syed Ahsan Shah, it is evident from the record that he was neither apprehended at the spot nor nominated in the FIR by name. His implication surfaced subsequently through a supplementary statement of the informant. No specific role of firing at the deceased was attributed to him. The learned High Court, while extending him the benefit of doubt, has assigned cogent and convincing reasons founded upon proper appreciation of the evidence available on record. We have examined the impugned judgment and do not find any illegality, perversity, misreading or non-reading of evidence which may justify interference by this Court in exercise of its discretionary jurisdiction. It is by now a settled principle that acquittal once recorded strengthens the presumption of innocence

and interference therein is warranted only when the judgment is found to be arbitrary, capricious or wholly against the evidence. No such infirmity has been pointed out before us. Consequently, the petition seeking leave to appeal against the acquittal of the respondent Syed Ahsan Shah is dismissed and leave is refused.

Judge

Judge

Judge

Lahore the
13th February, 2026
Not Approved for Reporting
M.Siraj Afridi PS